



DECISION

Complaint No. : POS/918/2022/NWS-19.

Name and address of the complainant : Mr. Wajid Hussain Channa s/o Abdul Wahid Channa, Mehran Colony, Sakrand Road, Nawabshah.

Name of the Agency Complained against : M.C Nawabshah/SBCA/SSGC.

Name & Designation of Investigating Officer : Khan Muhammad Zardari, Regional Director, Shaheed Benazirabad.

Vetted by : Syed Ali Mumtaz Zaidi, (PAS). Advisor-F.

Subject : **ALLEGED INACTION ON COMPLAINTS BY CMO AND OFFICIALS OF BUILDING DEPARTMENT, REGARDING CONSTRUCTION OF BUILDING BY ENCROACHING UPON THE AREA OF STREET (APPROXL. 6 FEET). NEAR SAKRAND ROAD, CAUSING PROBLEMS AND SERIOUS THREAT TO PUBLIC. GRANT OF ILLEGAL GAS CONNECTION ALSO ALLEGED.**

THE COMPLAINT:

Mr. Wajid Hussain filed a complaint vide letter dated 10.02.2022 wherein he stated that a triple-story building had been constructed as an encroachment on Sakrand-Society link road in Mehran Colony by one person named Bahadur Ali Lakho. He has frequently approached the concerned authorities to check legality of the illegal construction but to no avail. Aggrieved by that, he solicited intervention of this Institution.

PROCEEDINGS:

2. The complaint was admitted under Section 10 of the Establishment of the Office of Ombudsman for the Province of Sindh Act, 1991 (Amended up to date), subject to the submission of copy of CNIC, Affidavit on Form "A", other relevant documents and by condoning the delay.
3. This office issued notice to the Chief Municipal Officer, Nawabshah vide letter dated 09.05.2022 for report. In response, the Municipal Commissioner, Municipal Corporation, Shaheed Benazirabad informed vide letter dated 23.10.2023 and 11.10.2024 that the encroachment falls under the jurisdiction of the Revenue Department/Anti-Encroachment, who are to verify the encroachments with reference to the revenue records and layout plan and for taking appropriate action for its removal in accordance with the law.
4. The Agency's report was forwarded to the complainant for rejoinder/reply, if any vide letter dated 25.10.2024 but there is no response.

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5. To further probe the matter, the Investigating Officer, SBA, conducted a joint site visit alongwith the Assistant Commissioner and Mukhtiarkar (Revenue) Nawabshah and relevant staff. During the visit it was observed that building in question was located near a newly constructed road. The Agency's representatives verbally informed that the colony is near Bhada land. However, few years back some encroachments over the Bhada land were removed due to the construction of link road to main Sakrand road. It is also observed that the road has been now been widened and transportable for vehicles. There are many residential houses located in colony most of which are positioned on the "Bhada" land. The dispute concerns privately-owned buildings.

6. It is informed that Bhada land is command area of the Revenue System which was a drain built to contain flood waters etc. Bhada land also run from Khairpur and passes through different districts including Shaheed Benazirabad to contain flood and rain water. With the passage of time canal system has been improved, therefore, Bhada land use stands curtailed and have also been encroached by people of area.

DECISION:

7. In view of the above and in exercise of powers vested in me under Section 11 of the Establishment of the office of Ombudsman for the Province of Sindh Act, 1991 (Amended up-to-date), I do hereby dispose of the complaint. Accordingly, the complainant is at liberty to seek remedy from the competent forum established under the law.

8. This also disposes of an identical complaint received from complainant Adnan Ali Channa registered separately vide No. POS/1256/2024/NWS-29, on the above lines/directions.

Given under my hand and seal of office



Sd /-
(MUHAMMAD SOHAIL RAJPUT)
Sitara-e-Imtiaz. PAS
Ombudsman Sindh
Karachi, dated 10th December, 2025